

Before the
FEDERAL MARITIME COMMISSION

Washington, D.C. 20573

Docket No. 23-12

20230930-DK-BUTTERFLY-1, INC., F/K/A BED BATH & BEYOND, INC.

v.

MSC MEDITERRANEAN SHIPPING COMPANY SA

**JOINT SUBMISSION ON UNRESOLVED DISCOVERY DISPUTES AND
REQUEST FOR LEAVE TO FILE FURTHER JOINT DISCOVERY STATUS REPORT**

Pursuant to the May 9, 2024 Scheduling Order in this action (the “Scheduling Order”), Complainant 20230930-DK-Butterfly-1, Inc., formerly known as Bed Bath & Beyond, Inc. (“Complainant” or “BBBY”), and Respondent MSC Mediterranean Shipping Company SA (“Respondent” or “MSC” and, collectively with BBBY, the “Parties”), by their respective undersigned counsel, have corresponded substantively and met and conferred regarding the Parties’ respective interrogatories and requests for production of documents and electronically stored information (“ESI”), and respectfully submit this joint submission regarding unresolved potential discovery disputes and request for leave to file, after continuing to correspond and meet and confer on discovery, a further joint status report regarding the status of discovery and any unresolved disputes on July 12, 2024.

Consistent with the Scheduling Order, the parties timely served their respective initial requests for production of documents and ESI (collectively, the “RFPs”) and interrogatories (collectively, the “Interrogatories” and, together with the RFPs, the “Requests”) on May 1, 2024, and timely served their respective objections and responses thereto on June 3, 2024 (collectively,

the “Objections”). At the same time, the Parties worked collaboratively to negotiate, prepare, and submit for the Presiding Officer’s approval the June 13, 2024 Joint Motion for Entry of Protective Order and Protocol Regarding Electronically Stored Information, the latter of which contains a detailed, negotiated protocol for the collection, searching, and review of documents for potential production in discovery in this action. MSC has made an initial production of approximately 26,000 pages of documents in response to BBY’s RFPs, and both Parties anticipate continued rolling productions of documents following the Presiding Officer’s entry of the proposed Protective Order and ESI Protocol.

Counsel for the Parties have corresponded extensively and in detail regarding each other’s Objections to the Requests and have met and conferred on that topic via videoconference. With the mutual goals of resolving or narrowing any disputes to the extent possible and avoiding burdening the Presiding Officer with unnecessary motion practice, the Parties intend to continue meeting and conferring regarding the Requests and anticipate conferring again on June 18, 2024. Accordingly, for the foregoing reasons, the Parties jointly request leave to submit to the Presiding Officer a supplemental joint status report on July 12, 2024 to update the Presiding Officer on the Parties’ progress in discovery, any discovery disputes that remain unresolved at that time, and any potential discovery-related motion practice that may be necessary.

Dated: June 14, 2024

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Respectfully submitted,

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